

2022 C L C 532

[Lahore]

Before Jawad Hassan, J

MUHAMMAD AZAM----Petitioner

Versus

PROVINCE OF PUNJAB and others----Respondents

Writ Petition No.53173 of 2021, decided on 7th September, 2021.

(a) Constitution of Pakistan---

---Art.199---Constitutional petition---Judicial restraint---Policy decision by Government---Interim relief---Scope---Petitioner filed constitutional petition challenging the action of the respondents in taking over the land situated at old Walton Airport (Lahore) owned by Civil Aviation Authority (CAA) in an illegal manner---Validity---In the absence of any glaring illegality or violation of fundamental rights, it was imperative that the Courts should exercise judicial restraint from passing any adverse order, which could potentially hinder or nullify any government initiative to encourage and promote the investment process because judicial restraint encouraged the judges to exercise their powers with restraint and wisdom and limit the exercise of their own powers while intervening in the matters relating to policy of the government having financial perspective and outcome and exercise---High Court observed that without there being any obvious illegality and deviation from law, any interference by the Court within the purview of Art.199 of the Constitution would badly hamper the initiatives to enhance business activities and would put the whole scheme of actions for promotion of business and trade for the public, a fundamental right provided under Art.18 of the Constitution, to a standstill---Under Art.199 of the Constitution, High Court was though competent to exercise power of judicial review to examine administrative actions from the touchstone of violation of law and breach of Constitution yet the power of judicial review was regulated by the principles of Judicial Restraint---Interim relief, in writ petition, could only be granted as per mandate of Art.199(4) of the Constitution where it was clearly stated that under writ jurisdiction, before making an interim order, the Court had to look into the public interest which should not be harmed/hampered in any manner, therefore, keeping in view the fact that the petitioner had failed to make out a prima facie case in his favour and balance of convenience was not tilted in favour for grant of interim relief---Application for grant of interim relief was dismissed, in circumstances.

(b) Constitution of Pakistan---

---Art.199---Constitutional jurisdiction---Judicial restraint---Scope---Scope, purpose and limit of the judicial restraint asserts and advocates that the judges should hesitate to strike down laws unless they are obviously unconstitutional.

Dossani Travels (Pvt.) Ltd. and others v. Messrs Travels Shop (Pvt.) Ltd. and others
PLD 2014 SC 1 and Human Rights Case No.14392 of 2013 2014 SCMR 220 rel.

(c) Constitution of Pakistan---

---Art.199---Constitutional jurisdiction---Judicial review---Judicial restraint---Scope---
While using powers under Art.199 of the Constitution relating to a policy of the Government with financial layout and implications, the Court exercise the power of judicial review with judicial restraint as a substantive approach to interfere in such matters within the contemplation of judicial review while exercising constitutional jurisdiction.

Waqar A. Sheikh, Advocate Supreme Court assisted by Rafay Alam for Petitioner.

Barrister Umair Khan Niazi, Additional Advocate General, Punjab (on Court's call).

Ms. Sadia Malik, Assistant Attorney General for Federation of Pakistan (on Court's call).

Hamid-ul-Rehman Nasir, Civil Judge/Research Officer.

ORDER

JAWAD HASSAN, J.----The Petitioner has filed this writ petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution") by challenging the action of the Respondents in taking over the land situated at old Walton Airport owned by the Respondent, Civil Aviation Authority (the "CAA"), in illegal manner.

2. Mr. Waqar A. Sheikh, ASC submits that the Petitioner is a respectable citizen of this country and he, being a sole registered bidder under the Lahore Central Business District Development Authority Act, 2021 (the "Act"), has acquired some commercial plots in the aforesaid land. He further submits that on certain issues regarding ownership over the said plots as well as the procedure involved in this respect, including the fact that some property grabbers/ developers are trying to grapple the national heritage land, the Petitioner has filed an application on 03.09.2021 before the Respondent No.2/Chief Executive Officer, Lahore Central Business District Development Authority, Lahore (the "LCBDDA") for getting some necessary information about the project but without any response, hence, this petition.

3. When confronted how writ against such action of the Respondents is maintainable because under Section 3 of the Act, which seems to be replication/duplication of the Lahore Development Authority Act, 1975, the Government has power to notify/specify Walton Airport Area Lahore, including its surrounding areas or any other area as the Government may determine, Mr. Waqar A. Sheikh, ASC submits that the Petitioner is only aggrieved against the method and mechanism provided under the Act, which is contrary to the judgments passed on similar issues by the superior Courts of the country from time to time. He next contends that the Respondents concerned have not framed any rules while taking such action. He maintains that the project is being carried out without obtaining necessary

'No Objection Certificate' from the concerned hierarchy of the Punjab Environmental Protection Agency. He also points out that on similar issue this Court has already entertained Writ Petition No.47815 of 2021 and also issued pre-admission notice in the said writ petition, vide order dated 29.07.2021, which has been appended with this petition as Annexure-G.

4. At this juncture, the Court again confronted Mr. Waqar A. Sheikh, ASC regarding locus standi of the Petitioner to challenge the investment opportunities made by the LCBDDA and how he comes within the definition of an aggrieved person, which is a mandatory requirement to file a petition within the contemplation of Article 199 of the Constitution, as merely filing of an application for seeking certain information from Respondent No.2 and its being non-responsive, does not call for any interference by this Court while exercising powers under Article 199 of the Constitution because such exercise can possibly put a complete halt and hiatus to the initiatives taken by the Government for encouraging business activities/opportunities in Lahore by building up prospect and gateway for business community as well as infrastructure through the LCBDDA to ameliorate poverty and promote business in Pakistan. In the absence of any glaring illegality, or violation of fundamental rights, it is imperative that the Courts should exercise judicial restraint for passing any adverse order, which can potentially hinder or nullify any government initiative to encourage and promote the investment process because judicial restraint encourages the judges to exercise their powers with restraint and wisdom and to limit the exercise of their own powers to intervene in the matters relating to policy of the Government having financial perspective and outcome and exercise. The scope, purpose and limit of the concept of judicial restraint has been vastly elaborated by the Hon'ble Supreme Court of Pakistan in the case of Dossani Travels (Pvt.) Ltd. and others v. Messrs Travels Shop (Pvt.) Ltd. and others (PLD 2014 SC 1), relevant portion of which is reproduced hereunder:-

"27. In contemporary age, there has been a significant growth in the judicial review of administrative actions and the grounds on which the Courts interfere have been expanded. This expansion, however, "has taken place in the shadow of competing concerns of 'vigilance' and , 'restraint' and it is faithfulness to these dual concerns of vigilance and restraint which produces the unique supervisory jurisdiction which is the hallmark of judicial review." If the Courts fail to maintain this delicate balance, none else but people's confidence in the judiciary would be the worst victim. As aptly observed by Radford:

One of the principal aims of a system of judicial review must be to maintain a high level of public confidence in the administrative decision making process and this must also be borne in mind in assessing the level of judicial intervention which is desirable. It can be argued that the courts' desire to achieve a fair and just result in an individual case must be tampered with a commitment not to interfere unduly with the achievement of policy objectives."

In another judgment, reported as Human Rights Case No.14392 of 2013 (2014 SCMR 220), the Hon'ble Supreme Court of Pakistan has held that "the Court exercises judicial restraint in matters of government policy except where fundamental rights are violated. In his treatise "Judicial Review of Public Actions" (second Edition p. 639), Justice Fazal Karim has quoted the passage from the book "Taking Rights Seriously"

by Ronald Dworkin (p. 137-149) wherein he described that the term "Judicial Restraint argues that the court should allow the decisions of other branches of government to stand, even when they offend the judge's own sense of the principles required by the broad constitutional doctrines, except when those decisions are so offensive to political morality that they should violate the provisions on any plausible interpretation, or, perhaps, when a contrary, decision is required by clear precedent". Judicial Restraint asserts and advocates that the judges should hesitate to strike down laws unless they are obviously unconstitutional but in this case, the Petitioner has failed to point out or bring forth any unconstitutional act committed by the LCBDDA or CAA.

5. In response, Mr. Waqar A. Sheikh, ASC submits that he will further prepare his brief on the aforesaid aspects and assist the Court properly on the next date of hearing.

4. Subject to maintainability of this petition, notice be issued to the Respondents for 14.09.2021. Learned Law Officer will seek instructions from the relevant quarter(s) and will also endeavor and ensure submission of report/para-wise comments by the answering Respondents before the next date of hearing. All the senior officers of the relevant departments, well conversant with the facts of the case, shall also appear on the next date.

C.M.No.1/2021

5. Dispensation sought for is allowed subject to all just and legal exceptions. C.M. stands disposed of.

C.M.No.2/2021

6. This is an application under Order XXXIX, Rules 1 and 2 of C.P.C. for staying auction and transfer of plots in question.

7. As noted above, in the absence of any obvious illegality and deviation from law, any interference by this Court within the purview of Article 199 of the Constitution will badly hamper the initiatives to enhance business activities being carried out by the LCBDDA or CAA and will put the whole scheme of actions for promotion of business and trade for the public, a fundamental right provided under Article 18 of the Constitution, to a standstill. Under Article 199 of the Constitution, the Court is though competent to exercise power of judicial review to examine administrative actions from the touchstone of violation of law and breath of Constitution yet the power of judicial review is regulated by the principle of Judicial Restraint, the purpose and extent of which has already been discussed supra. While using powers under Article 199 of the Constitution relating to a policy of the Government with financial layout and implications, the Court exercise the power of judicial review with judicial restraint as a substantive approach to interfere in such matters within the contemplation of judicial review while exercising Constitutional Jurisdiction. Even otherwise, for grant of interim relief, it was obligatory upon the Petitioner to establish that all three ingredients a) prima facie arguable case; b) irreparable loss; and c) balance of inconvenience were in favor of his claim, however, he failed to establish a prima facie case

for grant of injunction in his favor and it is settled law that for grant of interim injunction, all three ingredients must co-exist and if one ingredient is missing, injunction cannot be wanted. This view is fortified from the judgment of Hon'ble Supreme Court of Pakistan in the case of Puri Terminal Ltd. v. Government of Pakistan through Secretary, Ministry of Communications and Railways, Islamabad and 2 others (2004 SCMR 1092) by holding as under:-

"21. No doubt an injunction is a form of equitable relief and is to be issued in aid of equity and justice, but not to add injustice. For grant of such, relief, it is mandatory to establish that in order to obtain an interim injunction, the applicant has not only to establish that he has a prima facie case, but he has also to show that the balance of convenience is on his side and that he would suffer irreparable injury/loss unless he is protected during the pendency of suit."

Further reliance can also be placed on the judgments reported as Saleem Mahmood Akhtar and 2 others v. Assistant District Officer and 5 others (2020 CLC 1094), Dewan Petroleum (Pvt.) Ltd. v. Oil and Gas Investment Ltd. (2019 CLC 1486), Mst. Rukayya Parveen and another v. Province of Punjab through D.O. (R) Pakpattan Sharif and 4 others (2017 MLD 1493), Mst. Azra Parvez and 3 others v. Sheikh Ashfaq Hussain and 7 others (2015 CLC 1695) and Gulzar Begum v. Ebboob Hussain alias Mehboob Khan (2012 YLR 809). Moreover, in a writ petition, an interim relief can only be granted as per mandate of Article 199(4) of the Constitution where it has been clearly stated that under writ jurisdiction, before making an interim order, the Court has to look into the public interest which should not be harmed/hampered in any manner, therefore, keeping in view the fact that the Petitioner has failed to make out a prima facie case in his favour and balance of convenience is not tilted in his favour for grant of interim relief, this application is dismissed.

SA/M-157/L

Petition dismissed.